

Regarding punitive damages, the Court's ruling sustaining the demurrer to the fraud cause of action necessarily requires striking the punitive damages allegations. There are no facts supporting malice or oppression.

As to attorney fees, it is well settled that attorney fees may be obtained only through written contract or based on statute. The opposition does not address the fact that there is no attorney fee provision included in the contract. As such the complaint fails to allege a legal basis supporting an award of attorney fees.

To the extent leave to amend is granted, Plaintiffs, if they so choose, shall amend within 20 days' notice of this order. If Plaintiffs elect not to amend, Defendants shall file an answer within 20 days thereafter. Defendants shall prepare and submit a form of order consistent with this ruling within two weeks.

11. 26CV01619 In re: Jackson, Melissa

EVENT: Change of name (minor)

The Court will hear from Petitioner.

The Court is in receipt of the proof of publication. CCP 1277(f) requires petitioner serve the petition on any living parents, and if the parents cannot be located, then the grandparents, if living, are to be served.

12. 26CV01761 Estrella, Jaime

EVENT: Change of name (adult)

As of this writing the Court is awaiting the results of the background check.